

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X

JOHN HIDALGO,

Plaintiff,

-v-

COMPLAINT

17 CIV.

CITY OF NEW YORK, P.O. FEBRES,
John Doe # 1,

JURY TRIAL DEMANDED

Defendants.

-----X

NATURE OF ACTION

1. This action is brought by Plaintiff to recover damages for the defendants' violations of Plaintiff's civil rights, wherein he was subject to an anal cavity search without a scintilla of probable cause, then issued a summons for disorderly conduct when he screamed in reaction to such conduct.

THE PARTIES

2. Plaintiff is a resident of East Harlem, New York, New York, and he happens to be disabled. He lives with his wife, who over the years has become more of a friend than a lover. Together they stay together and make their life about doting on their daughter, Jolie.

3. The City New York is a municipal corporation whose residence is in all five counties of New York City, including New York County.

4. Defendant Febres is an employee of the New York City Police Department; he works at the 23rd Precinct. Upon information and belief, John Doe is his partner.

JURISDICTION AND VENUE

5. Jurisdiction is proper in this district under 28 U.S.C. § 1331 in that this action arises under the Constitution and laws of the United States, among them 42 U.S.C. § 1983.

6. Venue is proper in this district under 28 U.S.C. § 1391(c) in that the City of New York is deemed to reside in this jurisdiction.

FACTUAL ALLEGATIONS UNDERLYING PLAINTIFF'S CLAIMS

7. Plaintiff repeats and realleges the allegations set forth in paragraphs 1 through 6 as if fully set forth herein.

8. This case involves a series of events, beginning with the illegal stop and search of an officer with an odd fetish (at least for a police officer on the job) for seeking people of his choice in their rectum, looking for contraband.

9. On September 7, 2016, plaintiff left his apartment with the intention of buying his daughter a special candy she likes that comes in a tube that a child can squeeze out and that looks like hair.

10. The store is called "All Fresh" at 334 East 106th Street in New York, NY.

11. Plaintiff entered the store at some time before 3 PM.

12. Plaintiff walked into the store and said hello to Steve, the proprietor; he was obeying all laws.

13. Within less than a minute the officer in question swooped seemingly out of nowhere and grabbed Plaintiff on the forearm.

14. Plaintiff protested and asked what was happening. "Are you a cop am I doing something wrong?" The officer, Febres, said nothing at first then he said, "it looks like you got a bulge there."

15. In fact, it was a minor raise on Plaintiff's side - his telephone and holster that was partially obscured by his polo shirt.

16. There was no basis for Febres to be searching for random bulges on a hunch; it could

have been a magazine, a bottle of soda, or, par chance, a cell phone.

17. Plaintiff was under no obligation to respond to the officer about the bulge, but he began to raise his shirt to expose it.

18. The officer then shoved Plaintiff against the shelves and took the phone.

19. Plaintiff said, "You see, it's just a phone."

20. At that point, the officer had no more reason to continue to harass Plaintiff. Nevertheless, he took the phone and patted him down continually for an invasive search.

At that point, Plaintiff saw a Caucasian plainclothes officer, John Doe #2 outside, watching inside.

21. The officer found no contraband after the invasive pocket and pat down search, but went through Plaintiff's pockets and removed everything including his wallet.

22. Then, with Plaintiff's belt still on, he slipped his hands up into Plaintiff's shorts, and reached his hand to his underwear and started fondling, squeezing, jerking and pinching Plaintiff's testicles through his underwear.

23. At one point, Plaintiff felt a finger on the shaft of his penis (again through the underwear).

24. Plaintiff screamed at this point, feeling sexually violated, at which time the cop called for backup.

25. Then, the officer manipulated his hands to the backside inside the shorts and again through plaintiff's underwear, which was somewhat sheer.

26. Then, extraordinarily, Plaintiff felt the officer's index finger wiggle around inside his buttocks cheeks, then his anus. Then he stuck a finger into his anus approximately an inch.

27. Plaintiff screamed and was highly distressed by this invasion, and continues to suffer

nightmares about it. He used the word “faggot,” but he is not a homophobe. Rather, as a heterosexual with a limited IQ who had never before been anally penetrated, let alone by someone’s bare, dirty hand and without lubricant, this seemed terribly wrong to him and his reaction was perfectly appropriate under the circumstances.

28. What Febres did was criminal sodomy: Plaintiff was not under arrest, and Febres had not even obtained any information that would have allowed him to search any further after the initial pat down and under-clothing search, which, again, were not justified by any measure.

29. The foregoing is apparently Officer Febres’ modus operandi, and the 23rd Precinct even brags about it. In a Twitter post, dated shortly October 6 and attached as “Exhibit A,” the NYPD bragged that “carrying your marijuana stash where the sun don’t shine won’t keep Officer Febres from finding it. That’s dedication.”

30. In other words, criminal sodomy in order to find a stash of marijuana – a decriminalized offense in the State of New York, and nothing in comparison to criminal sodomy, which is a felony – is good police work. No, Febres’ modus is absolute insanity and violates the Constitution.

31. The 23rd Precinct Twitter post obtained a bit of reaction from this Tweet. The online periodical Weed News obtained an official statement from the 23rd Precinct in response to the effect that Febres had made an arrest of a suspect for weapons possession and had found marijuana inside the suspect’s pants.

32. Pants? Surely the phrase “where the sun don’t shine” has never been associated with a location merely inside one’s pants, but a place more intimate inside one’s body. It is an expression well known to American slang. But this is the NYPD and this is an example of how it works: Openly brag about the “dedication” of an officer who looks for marijuana in someone’s

anus, then walk back from the statement when someone announces its complete illogic.

33. Back to the All Fresh bodega on September 6, 2016. After the illegal search, Febres told plaintiff: "Don't move." He demanded plaintiff's phone number. There was no reason for this, and surely he intended to use it later to intimidate him.

34. Plaintiff refused to give the phone number and said that this was an abuse of power. The officer then retaliated by writing a summons for disorderly conduct. He refused to give his badge or name, asked for multiple times. Rather, he said it was on the summons, which was written in triplicate and illegible.

35. Febres said, "Once you turn around and your property will be on the counter."

36. Mr. Hidalgo then went to the hospital to document the encounter and to be sure there were no injuries; he had never been sodomized before.

37. No injuries were found, but in order to be examined for this complaint, ironically, the medic had – legally this time – to place a sanitized, surgical glove on his hand, properly lubricated, and probe plaintiff's anus.

38. The entire experience caused plaintiff to suffer pain in his scrotum, and more significantly humiliation, and extreme emotional distress.

39. Later, he reported the matter to the IAB and or CCRB, but upon information and belief, was never contacted by that agency but rather officers of the 23rd Precinct, who visited his home.

40. Plaintiff is disabled, but he was smart enough to know that the 23rd Precinct was not going to protect him from another member of the 23rd Precinct. As such, he did not let them in his home for fear of retaliation.

41. The IAB might be investigating the incident; its official statement on the inquiry is that the complaint "is with the chief of the department." It refuses to provide more information.

Plaintiff does not believe that to be true. Plaintiff does not believe the police can police their own members and reign in the culture of brutality that they inflict upon both the innocent and the guilty. In this case, plaintiff was completely innocent of anything – even the nonsense summons was dismissed. But notwithstanding lawsuit after lawsuit after lawsuit, this City – unfortunately – provides fertile ground for people abused by the police, causing not only a clog of cases in the criminal courts, but the civil courts as well, both state and federal. Plaintiff has no place else to go, and sues for redress.

FIRST CAUSE OF ACTION
ILLEGAL SEARCH AND SEIZURE
42 U.S.C. § 1983

41. Plaintiff repeats and realleges the allegations set forth in all preceding paragraphs as if fully set forth herein.

42. Defendants acted under color of state law.

43. Febres had no probable cause to search plaintiff in any manner and Plaintiff was deprived of his rights as secured by the Fourth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. § 1983.

44. As a result of the foregoing, plaintiff has been damaged and demands compensatory and punitive damages.

FIRST CAUSE OF ACTION
EXCESSIVE USE OF FORCE
42 U.S.C. § 1983

45. Plaintiff repeats and realleges the allegations set forth in all preceding paragraphs as if fully set forth herein.

46. Defendants acted under color of state law.

47. Febres had no probable cause to touch plaintiff in any manner; therefore, any force he

might have used was excessive.

48. However, in addition to shoving him against a counter, searching plaintiff's shorts and feeling his penis and scrotum along his underwear, Febres pressed his finger into plaintiff's anus approximately one inch, which is not even a strip search – it is sodomy.

49. Plaintiff was deprived of his rights as secured by the Fourth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. § 1983.

50. As a result of the foregoing, plaintiff has been damaged and demands compensatory and punitive damages.

THIRD CAUSE OF ACTION
FAILURE TO INSTRUCT, SUPERVISE, CONTROL & DISCIPLINE DIRECTED AGAINST
THE CITY OF NEW YORK AND COGNIZABLE UNDER 42 U.S.C. § 1983

51. Plaintiff repeats and realleges the allegations set forth in all preceding paragraphs as if fully set forth herein.

52. At all times relevant to this complaint, defendants as officers of the City of New York Police Department, was acting under the direction and control of the City of New York, which acted through its agents and employees who were responsible for making policy of the police department, its officers and operations, and the individually named defendants were acting under either official policy or the practice, custom and usage of the City of New York and its Police Department.

53. Acting under color of law, by and through the policy makers of the City of New York and under official policy or custom and practice, the City of New York intentionally, knowingly, recklessly, or with deliberate indifference to the rights of the inhabitants of the City of New York, failed to instruct, supervise, control, and/or discipline, on a continuing basis, Defendants in the performance of their duties to refrain from:

- a. unlawfully seizing individuals present at the scene of the crime without probable cause or any reasonably articulable suspicion that that individual had committed any crime;
- b. training officers to arrest based on quotas;
- c. maintaining a “blue wall of silence” as the phrase is commonly known and officers never protecting citizens against the misdeeds of other officers;
- d. failing to discipline officers and praising them for excessive force – i.e., finding contraband “where the sun don’t shine.”

54. The City of New York had knowledge of or, had it diligently exercised its duties to instruct, supervise, control, and discipline on a continuing basis, should have had knowledge that the wrongs that were done, as heretofore alleged, or other unlawful or unconstitutional acts, were going to be committed. Defendant City of New York had power to prevent the commission of said wrongs, could have done so, and intentionally, knowingly, or with deliberate indifference to the rights of the inhabitants of the City of New York failed or refused to do so.

55. As a result of the foregoing, plaintiff was deprived of her right to be secure in her person, against unreasonable seizure of her person and against the use of excessive force in violation of the Eighth, Fourth and Fourteenth Amendments of the Constitution and 42 U.S.C. § 1983, and has been damaged.

FOURTH CAUSE OF ACTION
MALICIOUS PROSECUTION
42 U.S.C. § 1983

56. Plaintiff repeats and realleges the previous allegations as if fully set forth herein.

57. Acting under color of state law, defendants brought charges against plaintiff without probable cause, initially or at such time as it should have known there was no probable cause, and plaintiff was subject to post-arraignment deprivation.

58. As a result of the foregoing, Plaintiff has been damaged and demands compensatory and punitive relief.

FIFTH CAUSE OF ACTION
MALICIOUS PROSECUTION

59. Plaintiff repeats and realleges the previous allegations as if fully set forth herein.

60. Acting under color of state law, defendants brought charges against plaintiff without probable cause, initially or at such time as it should have known there was no probable cause.

61. As a result of the foregoing, Plaintiff has been damaged and demands compensatory and punitive relief.

SIXTH CAUSE OF ACTION
FAILURE TO PROTECT
42 U.S.C. § 1983
(JOHN DOE)

62. Plaintiff repeats and realleges the previous allegations as if fully set forth herein.

63. John Doe, upon information and belief, failed to protect plaintiff from false arrest and knew what Febres intended to do when he entered All Fresh. The two were acting in concert to find potential “perps” to keep up their numbers.

64. As a result of the foregoing, Plaintiff has been damaged and demands compensatory and punitive relief.

WHEREFORE, Plaintiff demands as follows:

- A. Compensatory damages;
- B. Punitive damages;
- C. Cost of suit and attorney’s fees under 42 U.S.C. § 1988;

D. Such other relief as may be just and proper.

Dated: New York, New York
February 11, 2017

/s/
GREGORY ANTOLLINO (GA 5950)
Attorney for Plaintiff
275 Seventh Avenue, Suite 705
New York, NY 10001

EXHIBIT A



NYPD 23rd Precinct @NYPD23Pct · 6 Oct 2016

Carrying your [#marijuana](#) stash where the sun don't shine won't keep Officer Febres from finding it. That's dedication. [#itswhatwedo](#).



528



875



1.0K